



SPONSOR: Rep. Heffernan & Rep. Bush & Sen. Cruce
Rep. Yearick; Sens. Buckson, Huxtable, Lockman,
Pinkney, Sokola, Townsend

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 170

AN ACT TO AMEND TITLE 4 OF THE DELAWARE CODE RELATING TO MICROBREWERIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 512C, Title 4 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 512C. Microbreweries; license; alternating premises.

4 (h) Notwithstanding § 546 of this title, a microbrewery may sell a product that the microbrewery manufactures for
5 off-premises consumption at a licensee licensed under this section and either at up to 2 brewery-pubs licensed under § 512B
6 of this title or 1 additional microbrewery licensed under this section and 1 brewery-pub licensed under § 512B of this title
7 that are all owned or controlled by the same person.

SYNOPSIS

Currently, the microbrewery statute permits a business to own 1 microbrewery and up to 2 brewpubs (a microbrewery that also has a restaurant as part of its business). This legislation would permit a microbrewery to choose to operate either 2 brewpubs or 1 additional microbrewery and 1 brewpub, under common ownership. The total number of licenses the business could hold remains 3, but it allows the business to choose 2 microbreweries and 1 brewpub, or 1 microbrewery and 2 brewpubs. A microbrewery can also choose to operate just one establishment.